

IN THE SUPREME COURT OF INDIA

Civil Appeal No. 2011/2024

Date of Decision: 05-04-2024

K. V. Raman ... Appellant

VERSUS

S. N. Swamy ... Respondent

FACTS OF THE CASE:

1. Suit for Specific Performance under Specific Relief Act, 1963.

ISSUES:

1. Continuous readiness and willingness to perform contract under Section 16(c).

REASONING & DECISION:

Plaintiff demonstrated readiness and financial capacity throughout.

RATIO DECIDENDI:

Readiness and willingness must be evaluated from contract date till decree.

DECISION:

Decree for specific performance granted.